

(provided her power of anticipation be not restrained), has, to the extent of her interest in the property, all the capacity of a *feme sole* (*g*).

β. The confirmation must be a solemn and deliberate act, not, for instance, fished out from loose expressions in a letter (*h*); and particularly where the original transaction was infected with fraud, the confirmation of it is so inconsistent with justice, and so likely to be accompanied with imposition, that the Court will watch it with the utmost strictness, and not allow it to stand but on the very clearest evidence (*i*).

γ. There must be no *suppressio veri* or *suggestio falsi*, but the *cestui que trust* must be honestly made acquainted with all the material circumstances of the case (*j*).

δ. It has been laid down that the confirming party must not be ignorant of the *law*, that is, he must be aware that the transaction is of such a character that he could impeach it in a Court of Equity (*k*); but it may be doubted whether this view is consistent * with the established doctrine, [*498] that mistake of *law* as distinguished from mistake of *fact* forms no ground for relief (*a*).

ε. The confirmation must be wholly distinct from and independent of the original contract (*b*) — not a conveyance of the estate executed in pursuance of a covenant in the original deed for further assurance (*c*).

(*g*) See *infra*.

(*h*) *Carpenter v. Heriot*, 1 Eden, 338; and see *Montmorency v. Devereux*, 7 Cl. & Fin. 188.

(*i*) *Morse v. Royal*, 12 Ves. 373, *per* Lord Erskine.

(*j*) See *Murray v. Palmer*, 2 Sch. & Lef. 486; *Baugh v. Price*, 1 G. Wils. 320; *Morse v. Royal*, 12 Ves. 373; *Cole v. Gibson*, 1 Ves. 507; *Roche v. O'Brien*, 1 B. & B. 338, and following pages; *Adams v. Clifton*, 1 Russ. 297; *Cockerell v. Cholmeley*, 1 R. & M. 425; S. C. Taml. 444; *Chessterfield v. Janssen*, 2 Ves. 146, 149, 152, 158; *Chalmer v. Bradley*, 1 J. & W. 51.

(*k*) See *Cann v. Cann*, 1 P. W. 727; *Dunbar v. Tredennick*, 2 B. & B. 317; *Burney v. Macdonald*, 15 Sim.

15; *Molony v. L'Estrange*, 1 Beat. 413; *Crowe v. Ballard*, 2 Cox, 357; S. C. 1 Ves. jun. 220; S. C. 3 B. C. C. 120; *Watts v. Hyde*, 2 Coll. 377; *Cockerell v. Cholmeley*, 1 R. & M. 425; *Murray v. Palmer*, 2 Sch. & Lef. 486; *Roche v. O'Brien*, 1 B. & B. 339; *Ex parte James*, 9 L. R. Ch. App. 609.

(*a*) *Midland Great Western Railway of Ireland Company v. Johnson*, 6 H. L. Cas. 798; and see *Stafford v. Stafford*, 1 De G. & J. 202; *Stone v. Godfrey*, 5 De G. M. & G. 76; *Re Saxon Life Assurance Company*, 2 J. & H. 412.

(*b*) See *Wood v. Downes*, 18 Ves. 128; *Morse v. Royal*, 12 Ves. 373; *Scott v. Davis*, 4 M. & Cr. 91, 92; *Roberts v. Tunstall*, 4 Hare, 267.

(*c*) *Roche v. O'Brien*, 1 B. & B.